

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOHNATHAN FLOYD,

Plaintiff

- against -

THE CITY OF NEW YORK,
DETECTIVE ANGEL RODRIGUEZ (shield # 1490),

Defendants.
-----X

Index No. _____

Purchased 11-1-22

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

Dated: November 1, 2022
Bronx, NY

Yours, etc.



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X

JOHNATHAN FLOYD,

Plaintiff,

Index No. _____

Verified Complaint

- against -

THE CITY OF NEW YORK,
DETECTIVE ANGEL RODRIGUEZ (shield # 1490),

Defendants.

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Plaintiff JOHNATHAN FLOYD, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY,
by ELLIOT S. KAY, principal, complaining of the Defendants, respectfully shows to this Court
and alleges the following upon information and belief:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff resided in the State of New York.
2. That at all times hereinafter mentioned, DETECTIVE ANGEL RODRIGUEZ (shield # 1490),
(hereinafter referred to as "DET. RODRIGUEZ") was employed by the NEW YORK CITY
POLICE DEPARTMENT (hereinafter referred to as "NYPD").
3. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK (hereinafter
referred to as "CITY"), is a municipal corporation organized and existing under the laws of the
State of New York, with a principal place of business located at 1 Centre Street, County of New
York State of New York.

4. That at all times hereinafter mentioned, the NYPD is an agency created and maintained by the above-mentioned municipal government.

PROCEDURAL POSTURE

5. On December 6, 2021, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

6. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.

7. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

STATEMENT OF FACTS

8. On August 20, 2021, at approximately 3:20 PM, Plaintiff was walking near the corner of 180th Street and Southern Boulevard in Bronx County.

9. At that time and place, a man with a gun quickly exited a vehicle and ran toward Plaintiff. In response, out of fear, Plaintiff ran. Shortly thereafter, other men started chasing Plaintiff and Plaintiff soon realized that the men were plain-clothed police officers. Accordingly, Plaintiff stopped and put his hands above his head.

10. After Plaintiff put his hands above his head, DET. RODRIGUEZ pushed Plaintiff against a car. Next, Plaintiff was forced to the ground and handcuffed.

11. DET. RODRIGUEZ searched Plaintiff without Plaintiff's consent and without any legitimate legal basis to search Plaintiff.

12. After Plaintiff was handcuffed and searched, Plaintiff was put in a van and taken to the 48th police precinct. At the precinct, Plaintiff was strip-searched and forced to remain inside of a holding cell.

13. Plaintiff was taken to Bronx County Central Booking around 3:00 AM on August 21, 2021.

14. Plaintiff remained at Central Booking until approximately 11:00 PM on August 21, 2021.

15. Plaintiff was released from custody without appearing before a Judge and without being prosecuted for any crime or offense.

16. DET. RODRIGUEZ falsely claimed to the Bronx County District Attorney's Office that Plaintiff participated in a drug sale to an undercover police officer. DET. RODRIGUEZ also falsely claimed that Plaintiff possessed a black bag that contained drugs.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AS AGAINST
ALL DEFENDANTS IN VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

17. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

18. Plaintiff sues all Defendants in their capacities.

19. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment of Plaintiff was carried out without a warrant or probable cause.

20. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

21. Prior to August 20, 2021, CITY and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct;

and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

22. It was the policy and/or custom of the NYPD to point guns at individuals without identifying themselves as police officers and in the absence of reasonable suspicion and/or probable cause. It was also the policy and/or custom to "stop and frisk" individuals for no reason other than an individual's race or ethnicity.

23. Finally, it was the policy and/or custom to strip-search arrestees at the precinct despite an absence of probable cause for the arrest.

24. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

25. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS FOR A SECOND CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF
PLAINTIFF'S CONSTITUTIONAL RIGHTS**

26. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

27. Defendant DET. RODRIGUEZ caused Plaintiff to apprehend and/or fear unfriendly contact by approaching Plaintiff, pushing Plaintiff into a car, forcing Plaintiff to the ground and violently handcuffing Plaintiff. As a result, Plaintiff experienced pain to his body.

28. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

29. Defendant DET. RODRIGUEZ assaulted Plaintiff in violation of Plaintiff's civil rights.

30. Due to the Defendants' assault on Plaintiff, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING AND
SUPERVISION**

31. Plaintiff repeats and re-iterates each and every allegation above as if set forth at length herein.

32. Prior to and on or about August 20, 2021, Defendant CITY knew or should have known DET. RODRIGUEZ to falsely arrest and otherwise harass other human beings.

33. Defendant CITY negligently hired and trained DET. RODRIGUEZ and negligently failed to supervise or discharge him from his employ, thereby causing and contributing to the above-stated incident.

34. Plaintiff was caused to sustain caused to shock and mental anguish; that these injuries and their effects will be permanent.

35. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FORTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

36. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

37. The acts of CITY and DET. RODRIGUEZ complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

38. Plaintiff was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

39. As a result of the foregoing, Plaintiff seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

40. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

41. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and /or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by Defendant DET. RODRIGUEZ.

42. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through their agents, servants, and/or employees, including DET. RODRIGUEZ, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and

excessive use of force.

43. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents, servants, and/or employees, including DET. RODRIGUEZ, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

44. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

45. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

46. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, strip-search, charging, failure to investigate, failure to adhere to law, rule and regulations known to them, failure to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.

47. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims against the Plaintiff without any further investigation of the incident.

Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and imprisoned Plaintiff with the intention of causing further harm and duress to Plaintiff.

48. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

49. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point

where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

50. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

51. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

52. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

53. Plaintiff therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: November 1, 2022
Bronx, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

TO:

HON. Sylvia Hinds-Radix
New York City Law Department
100 Church Street
New York, New York 10007

DETECTIVE ANGEL RODRIGUEZ (shield # 1490)

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOHNATHAN FLOYD,

Index No. _____

Plaintiff

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Defendants.

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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
November 1, 2022



ELLIOT S. KAY